

M/S Skmr Healthcare v. Purvanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 10 April 2025 · 2025:AHC:52795-DB · WRIT - C No. - 10678 of 2025 · **Writ disposed of; Executive Engineer directed to decide the representation within eight weeks.**

HEADNOTE

Writ seeking permanent disconnection of connection No. 196826900 after adjusting electricity duty and security deposit with interest, and handover of the service line under Clause 4.29(b) of the U.P. Electricity Supply Code, 2005, disposed of with a direction to the Executive Engineer, PUVVNL, EDD-Chail, Kaushambi, to pass a reasoned order on the pending representation in accordance with law within eight weeks after hearing the petitioner.

FACTUAL SUMMARY

The petitioner, M/S Skmr Healthcare, filed a writ seeking a mandamus to Purvanchal Vidyut Vitran Nigam Ltd. to permanently disconnect connection No. 196826900 after adjusting electricity duty and the security deposit with interest at the delayed-payment rate charged from it, and to hand over the service line under Clause 4.29(b) of the U.P. Electricity Supply Code, 2005. Counsel submitted that a representation dated 15 February 2025 to the Executive Engineer remained undecided.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.29(b)

permanent disconnection and service-line handover

HOLDING

A representation seeking permanent disconnection after adjustment of electricity duty and security deposit with interest, and handover of the service line under Clause 4.29(b), is to be decided by a reasoned order of the Executive Engineer in accordance with law after hearing the consumer; the High Court will not itself grant the mandamus on merits. ¶ 4-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO PERMANENT DISCONNECTION AFTER ADJUSTING ELECTRICITY DUTY AND SECURITY DEPOSIT WITH INTEREST AT THE DELAYED-PAYMENT RATE.

¶ 2-5

NOT DECIDED — WHETHER THE SERVICE LINE MUST BE HANDED OVER UNDER CLAUSE 4.29(B) OF THE U.P. ELECTRICITY SUPPLY CODE, 2005.

¶ 2-5